605 U. S. 73, 80 (2025) (quoting *Scott* v. *Harris*, 550 U. S. 372, 383 (2007)). There may be no "'easy-to-apply legal test'" or "'on/off switch'" in this context, *Barnes*, 605 U. S., at 80 (quoting *Scott*, 550 U. S., at 382–383), but one thing is clear: "The 'totality of the circumstances' requires courts to consider 'the whole picture,'" *Wesby*, 583 U. S., at 60 (quoting *Cortez*, 449 U. S., at 417). The D. C. Court of Appeals expressly declined to do that. 334 A. 3d, at 599. It instead considered *only* the observations that "(1) it was 2:00 a.m. and (2) R. W. reversed a few feet in a parking spot while the vehicle's rear door was open." *Id.*, at 605. Expressly "excis[ed]" from its analysis was, for example, the compelling fact that two individuals fled the vehicle as soon as they spotted the police car. Pretending that the most revealing aspect of the encounter did not happen is incompatible with the totality-of-the-circumstances approach required by our precedents.

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The petition for certiorari and R. W.'s motion to proceed *in forma pauperis* are granted, the judgment of the District of Columbia Court of Appeals is reversed, and the case is remanded for further proceedings not inconsistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR would deny the petition for a writ of certiorari.

JUSTICE JACKSON, dissenting.

The Fourth Amendment may require courts to "slosh . . . through a factbound morass." *Ante*, at 27 (internal quotation marks omitted). It does not require readers of judicial opinions to do the same. Any readable analysis will, of necessity, tick through factors, finding some weighty, others less so, and still others not at all, before piling them on a scale and assessing the result. That is what the court below did

here, and it was right to do so. Announcing a conclusion without providing reasoning along the way is not helpful to the parties, the public, or the development of the law.

To its credit, the Court applies a similar, factor-by-factor approach here. That the Court's analysis is comprehensible shows as much. Like the court below, the *per curiam* takes account of the facts in turn: a "late-night dispatch call about a suspicious vehicle"; R. W.'s companions' "unprovoked flight"; R. W.'s shift into reverse with a car door still ajar. *Ante*, at 26 (internal quotation marks omitted). And like the court below, the *per curiam* explains how much weight it assigns to each. Unprovoked flight, the Court says, is "certainly suggestive" of wrongdoing. *Ibid.* (internal quotation marks omitted). "[C]ombined" with the flight, the Court continues, R. W.'s abrupt reversal "strongly suggested" wrongdoing. *Ibid.* This is how courts write opinions.

So I am not sure why our Court sees fit to intervene in this case, let alone to do so summarily. If the intervention reflects a worry that the District of Columbia Court of Appeals (DCCA) misunderstands the Fourth Amendment's totality-of-the-circumstances analysis, that worry seems unfounded. The DCCA has grasped the correct inquiry. Its precedents rightly observe that "[t]he issue is not whether any one factor individually justifies a stop, but rather whether 'collectively' the totality of the circumstances supports a determination that the officers had reasonable suspicion for an investigatory stop." *Parker* v. *United States*, 333 A. 3d 1162, 1175 (2025) (citing *Mayo* v. *United States*, 315 A. 3d 606, 637 (2024) (en banc)); see also, *e.g.*, *Maye* v. *United States*, 260 A. 3d 638, 647 (2021); *Golden* v. *United States*, 248 A. 3d 925, 941 (2021).

If today's decision instead reflects dissatisfaction with the DCCA's comment that it " 'excis[ed]' " certain factors from its analysis, *ante*, at 26–27, I do not contest that this was poor word choice, see *United States* v. *Arvizu*, 534 U. S. 266, 274 (2002) (rejecting a "divide-and-conquer analysis"). But I do

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not think that word choice reflects a methodological error. Courts excise facts from their analyses every day. Opinion-writing is an exercise in culling the irrelevant; in application, no "totality-of-the-circumstances" test really lives up to its name. Indeed, today's *per curiam* necessarily omits a number of facts the Court finds insignificant—*e. g.*, the make and model of the car, the precise location of the stop, the color of R. W.'s friends' clothing. Though it does not say so, the Court "excises" those facts, too. It does not thereby misapply the Fourth Amendment.

If, finally, the Court's decision to intervene reflects disapproval of the DCCA's assessment of which particular facts to weigh and to what extent, I cannot fathom why that kind of factbound determination warranted correction by this Court. The DCCA assigned no weight to two facts—the dispatch call and the unprovoked flight. The Court does not seem to take issue with the first. For good reason: The DCCA reasonably applied our decisions explaining that an officer may not obtain reasonable suspicion by relying on the unsupported hunch of a fellow officer. See *Whiteley* v. *Warden, Wyo. State Penitentiary*, 401 U. S. 560, 568 (1971); *United States* v. *Hensley*, 469 U. S. 221, 232 (1985). The Court may be right that the second—the unprovoked flight—should have borne some rather than no weight. But if this context-specific adjustment is all the *per curiam* seeks to achieve, it does not merit the use of our summary discretion.

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Even if I would have assigned more heft to a particular fact in my own first-instance assessment, I would not wordsmith a lower court in this fashion. In my view, this is not a worthy accomplishment for the unusual step of summary reversal. Therefore, I respectfully dissent.